

Warsaw, July 13, 2022

Decision

DS.523.7988.2021

Pursuant to Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2021, item 735, as amended) in conjunction with Article 7(1) and (2) of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781), Article 5(1)(a), Article 9(1), Article 58(2)(b) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (OJ EU L 119 of May 4, 2016, p. 1, OJ EU L 127 of May 23, 2018, p. 2, and OJ EU L 74 of March 4, 2021, p. 35), after conducting administrative proceedings regarding the complaint of E.B. (R...) about irregularities in the processing of her personal data contained in a medical certificate by Director S. (...), (R...), President of the Personal Data Protection Office:

1) issues a reprimand to Director S. (...), (R...), for violating Article 9(1) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (OJ EU L 119 of May 4, 2016, p. 1, OJ EU L 127 of May 23, 2018, p. 2, and OJ EU L 74 of March 4, 2021, p. 35), consisting of the processing of personal data of Ms. E.B. (R...) regarding her first name, surname, PESEL number, date of birth, residential address, information about her physical and mental health along with the diagnosis of her illness, contained in the medical certificate without legal basis;

2) in all other respects, terminates the proceedings.

#### Justification

The Personal Data Protection Office received a complaint from Ms. E.B. (R...) (hereinafter: the Complainant) regarding irregularities in the processing of her personal data by Director S. (...) (R...) (hereinafter: the Director), consisting of the unlawful processing of personal data contained in a medical certificate.

During the conducted explanatory proceedings, the President of the Personal Data Protection Office established the following factual state:

The Complainant works as a teacher at S. (evidence: cover letter to the complaint dated (...) December 2021).

On (...) November 2021, an Order was issued by Director S. regarding the introduction of a mandate to cover the mouth and nose in common areas within the buildings of the Center (evidence: copy of the order dated (...) November 2021).

On (...) November 2021, the Complainant obtained a medical certificate stating absolute contraindications to wearing a mask or face shield. The certificate contained the Complainant's personal data regarding her first name, surname, PESEL number, date of birth, residential address, and information about her physical and mental health, along with the diagnosis of her illness (evidence: certificate dated (...) November 2021).

On (...) November 2021, the Complainant informed via an email sent to the address (...), with the Director in copy, that she is exempt from the obligation to cover her mouth and nose under the provisions of law and at the same time does not send any confirmation, as the Director is not authorized to view such a document (evidence: email dated (...) November 2021).

On (...) November 2021, the Director summoned the Complainant to present the document exempting her from the obligation to cover her mouth and nose on the premises of S., no later than the start of classes on (...) November 2021 (evidence: copy of the summons dated (...) November 2021).

On (...) November 2021, the Complainant presented to the Director the medical certificate stating

absolute contraindications to wearing a mask or face shield (evidence: cover letter to the complaint dated (...) December 2021; explanations from the Director dated (...) January 2022). The Complainant claims that the presentation of the certificate was not voluntary (evidence: cover letter to the complaint dated (...) December 2021), while the Director claims that the certificate was presented voluntarily by the Complainant (evidence: explanations from the Director dated (...) January 2022).

In a letter dated (...) January 2022, the Director indicated that he does not process the personal data of the Complainant contained in the medical certificate dated (...) November 2021, and his only contact with the certificate was the presentation of a photo of the certificate on the Complainant's phone screen (evidence: explanations from the Director dated (...) January 2022).

After reviewing the collected evidence, the President of the Personal Data Protection Office considered the following.

Article 4(2) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (OJ EU L 119 of May 4, 2016, p. 1, OJ EU L 127 of May 23, 2018, p. 2, and OJ EU L 74 of March 4, 2021, p. 35) (hereinafter: GDPR) states that processing means an operation or set of operations performed on personal data or sets of personal data, whether by automated or non-automated means, such as collection,

**\*\*Recording, organizing, arranging, storing, adapting or modifying, downloading, viewing, using, disclosing through transmission, dissemination or other forms of sharing, matching or combining, restricting, deleting or destroying. The catalog of processing activities in Article 4 point 2 of the GDPR is an open catalog.\*\***

According to Article 5 paragraph 1 letter a of the GDPR, personal data must be processed lawfully, fairly, and in a transparent manner for the data subject, while according to Article 5 paragraph 1 letter c of the GDPR, such data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed.

Article 9 of the GDPR states that the processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, as well as the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, or data concerning health, sexuality, or sexual orientation of that person is prohibited. The processing of these special categories of personal data is permitted only if one of the conditions specified in Article 9 paragraph 2 of the GDPR is met. Each of the grounds for legitimizing the processing of personal data is autonomous and independent. This means that these grounds are generally equal, and therefore the fulfillment of at least one of them constitutes lawful processing of personal data. Data concerning health, according to Article 9 paragraph 1 of the GDPR, constitutes a special category of personal data. Health data, according to Article 4 point 15 of the GDPR, is defined as "personal data concerning the physical or mental health of a natural person – including the provision of health care services – revealing information about the state of their health."

**\*\*Article 68 paragraph 1 point 6 of the Act of December 14, 2016 - Educational Law (consolidated text: Journal of Laws of 2021, item 1082, as amended) (hereinafter: Educational Law) states that the director of a school or institution performs tasks related to ensuring the safety of students and teachers during activities organized by the school or institution.\*\***

At the time of the events described in the complaint, i.e. in November 2021, the Regulation of the Council of Ministers of May 6, 2021, on the establishment of certain restrictions, orders, and prohibitions in connection with the occurrence of an epidemic state (Journal of Laws 2021.861 of May 6, 2021) was in force in the version applicable from October 31, 2021, to November 29, 2021 (hereinafter: the Regulation). § 25 paragraph 1 point 2 letter d of the Regulation stated that it was mandatory to cover the mouth and nose with a mask in public places, including in public utility buildings intended for the needs of: public administration, justice, culture, religious worship, education, higher education, science, upbringing, health care, social or welfare services, banking services, trade, gastronomy, services, including postal or telecommunications services, tourism, sports, and passenger

service in rail, road, air, maritime, or inland water transport. However, this obligation did not apply, among others, to persons who could not cover their mouth or nose due to, among others: a) global developmental disorders, mental disorders, intellectual disabilities of moderate, severe, or profound degree, b) difficulties in independently covering or uncovering the mouth or nose, c) advanced neurological, respiratory, or circulatory diseases, accompanied by respiratory or circulatory failure (§ 25 paragraph 4 point 4 of the Regulation). § 25 paragraph 7 of the Regulation stated that in the case referred to in paragraph 4 point 4, it was required to present, at the request of the Police, municipal guards, the Marshal's Guard in areas managed by the Chancellery of the Sejm and the Chancellery of the Senate, the Border Guard at air border crossings, and in the railway area, on trains and in areas designated for servicing passengers using railway transport at railway stations, also at the request of railway protection services, a medical certificate or other document confirming global developmental disorders, mental disorders, intellectual disabilities of moderate, severe, or profound degree, or difficulties in independently covering or uncovering the mouth or nose, or advanced neurological, respiratory, or circulatory diseases, accompanied by respiratory or circulatory failure.

In turn, Article 100 § 2 point 6 of the Act of June 26, 1974, the Labor Code (consolidated text: Journal of Laws of 2020, item 1320, as amended) (hereinafter: the Labor Code) states that an employee is obliged, in particular, to observe the principles of social coexistence in the workplace. On November (...) 2021, a Directive from the director S. was issued regarding the introduction of a mandate to cover the mouth and nose in common areas within the buildings (hereinafter: the Directive). This Directive was issued based on Article 68 paragraph 1 points 1 and 6 of the Educational Law in connection with § 25 paragraph 1 of the Regulation. The Directive introduced the obligation to cover the mouth and nose with a mask in common areas in the buildings of the Center; however, this obligation did not apply, among others, to persons exempted from this obligation by law. On (...) November 2021, the complainant obtained a medical certificate stating absolute contraindications to wearing a mask or face shield. The certificate contained the complainant's personal data including name, surname, PESEL number, date of birth, address of residence, and detailed information about the complainant's physical and mental health, along with the diagnosis of the disease. The complainant informed on (...) November 2021.

informed the Director via email that she is exempt from the obligation to cover her mouth and nose under the provisions of the law. At the same time, the Complainant informed that she would not provide a copy of the document confirming such exemption, as the Director is not authorized to access such a document. It should be noted that § 25(7) of the regulation creates a requirement to present such a document only to a limited range of entities, and the management of schools or special educational and care centers is not on this list. The catalog of entities authorized to access such documents has been constructed in a closed manner. The Director confirmed in the explanations submitted that he received the aforementioned email from the Complainant; however, he did not address it in any way. At this point, it should be indicated that, in the opinion of the President of the Office, the Director was properly and sufficiently informed about the Complainant's exemption from the obligation to cover her mouth and nose at the workplace.

On (...) November 2021, the Director sent an official letter to the Complainant, in which, acting under Article 68(1)(1) and (6) of the Education Law in connection with Article 100(2)(6) of the Labor Code, he requested her to present the document exempting her from the obligation to cover her mouth and nose on the premises of the Center no later than the start of classes on (...) November 2021. The Director called upon the Complainant to present him with the document exempting her from the obligation to cover her mouth and nose on the premises of the Center, due to the Complainant's work in this Center as a teacher.

At this point, it should be noted that there is a general prohibition on processing special categories of personal data, and Article 9(2) of the GDPR introduces exceptions to this prohibition. According to Article 9(2)(a) of the GDPR, it is possible to process special categories of personal data if the data subject has given explicit consent to the processing of those personal data for one or more specific purposes, unless Union law or the law of a Member State provides that the data subject may not

revoke the prohibition referred to in Article 9(1) of the GDPR.

On (...) November 2021, the Complainant presented the Director with a document exempting her from the obligation to cover her mouth and nose at the workplace in the form of a medical certificate. The analysis of the evidence did not unequivocally and indisputably show that this document was presented voluntarily. The Complainant firmly denied having given voluntary and explicit consent to the processing of her data contained in the certificate. In the opinion of the President of the Office, the Director did not demonstrate the existence of the possibility of applying the above-described exception to the general prohibition on processing special categories of data in this case. The Director also did not directly indicate any of the legal grounds for processing special categories of data mentioned in Article 9(2) of the GDPR. Further actions taken by the Director to obtain access to the document exempting the Complainant from the obligation to cover her mouth and nose, after being informed by the Complainant of her unwillingness to present this document, contradict the voluntariness of the document's presentation by the Complainant. Therefore, in the opinion of the President of the Office, the Director's argument regarding the voluntariness of the presentation of personal data by the Complainant does not deserve consideration.

The Director's references in the explanations to Article 68(1)(6) of the Education Law, Article 100 § 2(6) of the Labor Code, and unidentified guidelines "MEiN, MZ, and GIS for primary and secondary schools" cannot be classified as justification for demonstrating the legal basis under Article 9(2)(b) of the GDPR or Article 9(2)(h) of the GDPR. It should be noted that the regulation constitutes a specific provision in relation to the aforementioned regulations, and its violation leads to the illegality of processing special categories of data described in Article 9(1) of the GDPR.

As indicated above, the catalog of processing activities in Article 4(2) of the GDPR is an open catalog. Gaining access to a document containing personal data and familiarizing oneself with its content, despite the lack of data recording, constitutes processing of personal data. The Complainant's personal data were indeed reviewed by the Director and were used to make the decision to allow the Complainant to perform work as a teacher. Consent cannot be considered voluntary if the data subject does not have a real or free choice and cannot refuse or withdraw consent without adverse consequences, as indicated in Recital 42 of the GDPR.

In light of the above, in the opinion of the President of the Office, the processing of the Complainant's personal data contained in the document exempting her from the obligation to cover her mouth and nose on the premises of the Center, involving gaining access to the Complainant's personal data, constituted a violation of Article 9(1) of the GDPR. Additionally, in the opinion of the President of the Office, the request directed at the Complainant constituted a violation of the principles of personal data processing described in Article 5 of the GDPR in the form of the principle of lawfulness and fairness of processing (Article 5(1)(a) of the GDPR) and the principle of data minimization (Article 5(1)(c) of the GDPR). Lawfulness of processing means the requirement to comply with the norms established in legal provisions. The principle of lawfulness of processing applies not only to the provisions of the GDPR but also to provisions contained in other normative acts, both of statutory rank and provisions of executive acts. In this case, the Director processed the Complainant's personal data, despite not being authorized to do so, in accordance with § 25(7) of the regulation. In the opinion of the President of the Office, there was a violation of the principle of lawfulness of personal data processing.

The requirement of fairness encompasses not only the obligation... are part of the administrative procedure in this case. The President of the Office, when issuing an administrative decision, is obliged to resolve the matter based on the factual state existing at the time of issuing that decision. As stated in the doctrine, "the public administration authority assesses the factual state of the case at the moment of issuing the administrative decision. This rule also applies to the assessment of the legal state of the case, which means that the public administration authority issues an administrative decision based on the legal provisions in force at the time of its issuance (...). Resolving in administrative proceedings involves applying the applicable law to the established factual state of the administrative case. In this way, the public administration authority fulfills the purpose of administrative proceedings, which is to realize the applicable legal norm in the area of

administrative-legal relations when such relations require it" (Commentary on the Act of June 14, 1960, Code of Administrative Procedure, M. Jaśkowska, A. Wróbel, Lex, el/2012). Furthermore, in a judgment dated May 7, 2008, in case file I OSK 761/07, the Supreme Administrative Court stated that "when examining the legality of personal data processing, the GODO has the obligation to determine whether, at the date of issuing the decision in the matter, the data of a specific entity is being processed and whether it is being done in a lawful manner."

The President of the Office, during the explanatory proceedings, established that the violation subject to the complaint is no longer occurring. The Director is not processing the personal data of the Complainant contained in the certificate exempting from the obligation to cover the mouth and nose. In light of this, the President of the Office cannot consider the Complainant's request to cease the processing of her data by the Director. At the time of issuing this decision, the aforementioned processing of the Complainant's personal data is not taking place.

Regarding the Complainant's request for "imposing a penalty" on the Director, it should be noted that the imposition of administrative monetary penalties falls within the competencies of the President of the Office; however, it is part of the autonomous competencies of the President of the Office, and actions related to punishment are not part of the administrative procedure in this case. are taken at the request of the complaining party. The assessment made by the President of the Office in each case serves to examine the legitimacy of directing a mandate corresponding to the provisions of Article 58(2) of the GDPR towards a specific entity, aimed at restoring compliance with the law in the data processing process - it is therefore justified and necessary only to the extent that irregularities in the processing of personal data exist. In the matter at hand, the actions of the Director constituted a violation of the provisions on the protection of personal data, namely Articles 5 and 9 of the GDPR, therefore the President of the Office issues a reprimand to the Director, while in the remaining scope, the President of the Office decides to discontinue the proceedings.

In this factual and legal situation, the President of the Personal Data Protection Office ruled as stated in the operative part.

The decision is final. Based on Article 7(2) of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781) in conjunction with Article 13 § 2, Article 53 § 1, and Article 54 of the Act of August 30, 2002, on proceedings before administrative courts (consolidated text: Journal of Laws of 2022, item 329), a party dissatisfied with this decision has the right to file a complaint with the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery to the party. The complaint is submitted through the President of the Personal Data Protection Office (address: Personal Data Protection Office, ul. Stawki 2, 00-193 Warsaw). The fee for the complaint is 200 zlotys. The party has the right to apply for exemption from court costs or for legal aid.

Print article

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